

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA,
SITTING IN ITS MARCH TERM, A. D. 2025.

BEFORE HER HONOR: SIE-A-NYENE G. YUOH CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE ... ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA ASSOCIATE JUSTICE
BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR.... ASSOCIATE JUSTICE
BEFORE HER HONOR: CEATNEH D. CLINTON-JOHNSON.....ASSOCIATE JUSTICE

J. Annan Automobile Export and Effestrasse 38-40)
Haburg, Germany, represented by ad thru Mr. J.)
Annan of the City of Monrovia, Liberia Movant)

Versus)

Motion to Dismiss)

Yourné Trading Company, Inc., represented by its)
General Manager, Controller and all those under their)
Control, all of the City of Monrovia, Liberia)
..... 1st Respondent)

And)

The Intestate Estate of the late William G. Barclay by)
and thru its Administratrixes and Administrator, Mrs.)
Helen Barclay Suah, Yonrue Barclay Myers, Ellen)
Barclay and Lawrence Barclay, all of the City of)
Monrovia, Republic of Liberia 2nd Respondent)

GROWING OUT OF THE CASE:

Yourné Trading Company, Inc., represented by its)
General Manager, Controller and all those under their)
Control, all of the City of Monrovia, Liberia)
..... 1st Appellant)

And)

The Intestate Estate of the late William G. Barclay by)
and thru its Administratrixes and Administrator, Mrs.)
Helen Barclay Suah, Yonrue Barclay Myers, Ellen)
Barclay and Lawrence Barclay, all of the City of)
Monrovia, Republic of Liberia 2nd Appellant)

Versus)

Appeal)

J. Annan Automobile Export and Effestrasse 38-40)
Haburg, Germany, represented by ad thru Mr. J.)
Annan of the City of Monrovia, Liberia Appellee)

GROWING OUT OF THE CASE:

J. Annan Automobile Export and Effestrasse 38-40)
Haburg, Germany, represented by ad thru Mr. J.)
Annan of the City of Monrovia, Liberia Petitioner)

Versus)

Petition for
Foreclosure of)

Yourne Trading Company, Inc., represented by its	)	Mortgage Deed
General Manager, Controller and all those under their	)	
Control, all of the City of Monrovia, Liberia	)	
..... 1 st Respondent	)	

And

The Intestate Estate of the late William G. Barclay by	)
and thru its Administratrixes and Administrator, Mrs.	)
Helen Barclay Suah, Yonrue Barclay Myers, Ellen	)
Barclay and Lawrence Barclay, all of the City of	)
Monrovia, Republic of Liberia 2 nd Respondent	)

Heard: March 18, 2025

Heard: May 28, 2025

MR. JUSTICE KABA DELIVERED THE OPINION OF THE COURT.

It is a settled principle in this jurisdiction that only strict compliance with the mandatory provisions of the appeal statute confers jurisdiction on the Supreme Court of Liberia to entertain and delve into the merits of a matter certified for an appellate review. *Anthony Armah et al v. Intestate Estate of Kemah Hoki Johnson, Supreme Court Opinion, March Term, 2024*. A failure to comply with any of the mandatory jurisdictional steps outlined under the *Civil Procedure Law Revised Code: 1:51.4* in all civil cases and Article IV sections (2) and (3) of the Commercial Court Act in the Commercial Court is a ground for the dismissal of an appeal.

The appeal, the subject of this motion to dismiss grew, out of a hearing before the Commercial Court on a petition for a foreclosure of a mortgage deed filed by the movant herein as the petitioner. After the hearing on the petition, the trial judge ruled adjudging the respondents herein liable to the movant for US\$413,455.28 (Four Hundred Thirteen Thousand Four Hundred Fifty Five Dollars Twenty-eight cent) along with statutory interest and all costs of the proceedings and that failure of the respondents to satisfy this judgment, the property the subject of the mortgaged be exposed to public auction consistent with sections 6.20 and 6.21 of the Commercial Code. The respondents entered exceptions, announced an appeal, filed a bill of exceptions, appeal bond, and service and filing of a notice of completion of the appeal but failed to deposit the judgment sum of US\$413,455.28 (Four Hundred Thirteen Thousand Four Hundred Fifty Five Dollars Twenty-eight cent) in an interest-bearing escrow account. The

notice of completion of appeal having been served and filed thereby divesting the trial court of jurisdiction, the movant flew before this Court with a four-count motion to dismiss the appeal substantially alleging that the 2nd respondent herein refused, failed, and neglected to comply with Article IV; Sections (2) and (3) of the Act creating the Commercial Court by depositing the full judgment sum in an interest bearing escrow account with a commercial bank.

In resisting the motion, the 2nd respondent contends that the judge having ruled granting the petition for foreclosure of the mortgage deed and ordered that the mortgaged property be exposed to public auction upon the failure of the respondent to satisfy the judgment amount of US\$471,543.00, the appeal by the respondent cannot serve as a stay to the auctioning of the mortgaged property upon the failure of the respondent to, in the alternative pay in the escrow account the amount of the court's judgment. That such sale and subsequent deposit of the proceeds of the auction in an interest-bearing escrow account does not preclude the court from hearing and determining the appeal.

Giving due consideration to the movant's motion and the respondent's resistance thereto and after listening to the argument of the parties, and considering the law relied upon by them, the issue that is determinative here is:

- Whether upon the failure of the appellant to deposit the judgment amount into an interest-bearing escrow account, the court may, in a foreclosure proceeding, exposed the mortgage property to public auction and the proceeds therefrom deposited in an interest-bearing escrow account pending the determination of the appeal.

We shall proceed to address this issue.

The respondent averred that the judge, in his final ruling, held that the mortgagor was in violation of the terms of the mortgage agreement, and therefore the mortgage be foreclosed and the mortgaged property be exposed to auction pursuant to Chapters 6.20 and 6.21 of the Commercial Code in the event the mortgagor failed to pay the amount of US\$ US\$413,455.28 representing the mortgagor indebtedness to the mortgagee. The respondent, therefore, argued that the respondent having appealed from the final ruling of the Commercial Court and having failed to

pay into an interest-bearing escrow account the judgment amount, the movant had the duty pursuant to chapters 6.20 and 6.21 to superintend the process of exposing the mortgaged property to the public sale as ordered in the judge's final ruling and the proceed realized therefrom be placed in an interest-bearing escrow account pending the outcome of the appeal. In other words, the respondent is contending that the appeal announced from the final ruling of the Commercial Court does not serve as a stay of the enforcement of the said ruling considering that the respondent failed to deposit the judgment sum in an interest-bearing escrow account.

On the other hand, the movant maintained that under Article IV(3) of the Commercial Court, it is a mandatory requirement for the perfection of an appeal from a final ruling of the Commercial Court where a sum certain is determined for the appellant to deposit in an interest-bearing escrow account the amount of the judgment. Failure to act according, the appeal is dismissible as a matter of law.

This Court says that it is the law that an appeal served as a stay to the enforcement of a judgment excepts where otherwise provided for by law. Civil Procedure Law Revised Code 1:51.20 caption: "effect of appeal as a stay". The Commercial Code at Article IV (3) provides that "'Payment of the full amount of judgment shall be a condition precedent for the completion of an appeal from a judgment of the Commercial Court, but the appeal bond which may be required of the appellant shall be exclusive of the amount of the judgment paid". It is however the contention of the respondent that Chapters 6.20 and 6.21 create an exceptional condition to excuse the respondent from abiding by the dictate of Article IV (3) in the perfection of his appeal.

An examination of chapters 6.20 and 6.21 shows that these sections concern itself with the procedure to be adopted by a court in exposing a mortgaged property to public auction. There is nowhere under these chapters where it is expressly or imply provided that an appeal in a foreclosure proceeding does not serve as a stay to the enforcement of the final ruling of the court nor is there any express or implied provision under the two chapters that provide that the failure of the mortgagor to deposit in

an interest-bearing escrow account the full amount of the judgment, the court shall proceed to dispose of the mortgaged property and place the proceeds therefrom in an interest-bearing escrow account pending the outcome of the appeal. In the absence of any such express or implied provisions, Section 51.20 of the Civil Procedure Law and Article IV(3) of the Commercial Code remain controlling. Hence, the failure of the respondent to deposit the judgment amount in an interest bearing escrow account in a foreclosure proceeding, the court cannot expose the mortgage property to public auction and deposit the proceeds therefrom in an interest bearing escrow account as a condition to complete the appeal process. Therefore the failure of the respondent to abide by the provisions of Article IV(3) of the Commercial Code renders his appeal dismissible.

WHEREFORE AND IN VIEW OF THE FOREGOING, the motion to dismiss the appeal is hereby granted and the appeal ordered dismissed. The Clerk of this Court is ordered to send a Mandate to the court below commanding the judge presiding therein to resume jurisdiction over the case and enforce the Judgment of this Opinion. Costs are ruled against the respondents. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLOR G. WIEFUEH ALFRED SAYEH OF SAYEH AND SAYEH LAW OFFICES APPEARED FOR THE MOVANT. COUNSELLOR J. JOHNNY MOMOH OF THE J. JOHNNY MOMOH AND ASSOCIATES LEGAL CHAMBERS, INC. APPEARED FOR THE RESPONDENTS.



ASSOCIATE JUSTICE
SUPREME COURT OF LIBERIA



JUDICIAL BRANCH
TEMPLE OF JUSTICE
MONROVIA, LIBERIA

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM, A.D. 2025

BEFORE HER HONOR : SIE-A-NYENE G. YUOHCHIEF JUSTICE
BEFORE HER HONOR : JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA.....ASSOCIATE JUSTICE
BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SRASSOCIATE JUSTICE
BEFORE HER HONOR : CEATNEH D. CLINTON JOHNSONASSOCIATE JUSTICE

Church of God in Christ, Inc. by and thru its Pastor, James
McGill, of the City of Monrovia Movant

Versus

Jeannette K. White by and thru her husband Alex White, and
heirs and administrators of the estate of Kaiser A. A. Knowlden
of the City of MonroviaRespondents

GROWING OUT OF THE CASE:

Jeannette K. White by and thru her husband Alex White, and
heirs and administrators of the estate of Kaiser A. A. Knowlden
of the City of MonroviaAppellants

Versus

Church of God in Christ Inc., by and thru its Pastor, James
McGill, of the City of MonroviaAppellee

Motion to Dismiss
Appeal

Appeal

JUDGMENT

When this case was called for hearing, Counsellor Peter W. Howard of the Howard and Partners Inc. appeared for the movant. Counsellor Finley Y. Kamgar appeared for the respondents.

Having reviewed the records, heard the arguments and contentions advanced by the counsels representing the parties, and considered the relevant laws applicable thereto, it is hereby,

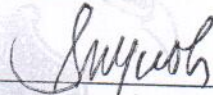
ADJUDGED:

That the Supreme Court has consistently opined that the failure to comply with the mandatory steps of the appeal statute, as provided for in the *Civil Procedure Law, Rev. 1:51.4*, is ground for the dismissal of an appeal; and

That in the instant case, the final ruling of the trial court having been handed down on June 26, 2018, and the respondents announced an appeal and filed a bill of exceptions within the statutory time, but failed to complete the remaining mandatory steps by filing an appeal bond and serving and filing a notice of completion of the appeal, the appeal is dismissible as a matter of law.

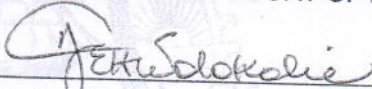
WHEREFORE AND IN VIEW OF THE FOREGOING, the movant's motion to dismiss the appeal is hereby granted, and the appeal ordered dismissed. The Clerk of this Court is ordered to send a Mandate to the Court below, commanding the judge presiding therein to resume jurisdiction over this case and give effect to this Judgment. Costs are ruled against the respondents. AND IT IS HEREBY SO ORDERED.

GIVEN UNDER OUR HANDS AND SEAL OF
THE SUPREME COURT OF LIBERIA THIS
28TH DAY OF MAY, A.D. 2025



Sie-A-Nyene G. Yuoh

CHIEF JUSTICE, SUPREME COURT OF LIBERIA



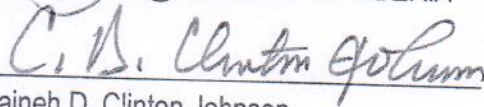
Jamesetta Howard Wolokolie

ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA



Yamie Quiqui Gbeisay, Sr

ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA



Ceaineh D. Clinton Johnson

ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA

Note: Mr. Justice Yussif D. Kaba did not participate in the hearing and determination of this case as he handled certain aspects of the case while serving as a circuit court judge. Hence, he did not sign this Judgment.